

1.

CASE #	CASE NAME	HEARING NAME
CVPS2203638	WHITLEY'S CONSTRUCTION	HEARING RE: MOTION TO COMPEL

Tentative Ruling: “If a party filing a response to a demand for inspection, copying, testing, or sampling . . . thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance.” (C.C.P. § 2031.320(a).) There is no meet and confer requirement. (*Id.*)

Additionally, where responses to document requests have been timely provided but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion compelling further responses. (C.C.P. § 2031.310 (a).) In a motion to compel a further response to document requests, the moving party must state facts demonstrating good cause justifying the discovery sought by demonstrating relevance and specific facts justifying discovery. (C.C.P. §2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

The Bottomleys seek an order compelling Whitley’s to either produce text messages responsive to RFP nos. 29-37, 42, and 43, or provide further code-compliant responses stating no such documents exist and why.

RFPs 29-37, 42, and 43, served by Richard Bottomley in November 2023, requested, among other things, text messages, between Whitley’s and various third parties related to the Project. (Montez Decl., Ex. A, nos. 29-37, 42, 43.) In February 2024, Whitley’s served responses to the RFPs, stating it “will produce all non-privileged responsive documents in its possession, custody, and/or control.” (Montez Decl., Ex. B, nos. 29-37, 42, 43.) Although Whitley’s now claims that it was unable to access any text messages related to the Project because Mr. Whitley got a new phone [Opposition, p. 2:14-17], it presents no evidence of this. The undisputed evidence shows that in April 2026, Whitley’s acknowledged that such text messages exist and were in its possession at that time (still on Mr. Whitley’s phone), [Montez Decl., Ex. C, pp. 126:10-127:9], but no such text messages have been produced. The documents requested are relevant to the claims at issue in this lawsuit, and Whitley’s agreed to produce them. Without evidence that no such documents exist in Whitley’s possession, custody, or control, or a verified response stating the same, Whitley’s should produce these documents.

If, as Whitley’s contends, it truly has no responsive documents in its possession, custody, or control, it must provide a verified response that complies with C.C.P. § 2031.230, which states:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is

because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(*Ibid.*) This is not the court requiring Whitley's to change a valid discovery response, as Whitley's claims, but rather complying with discovery when documents Whitley's previously verified and confirmed existed in its possession, custody, and control and would be produced are not actually in its possession, custody, or control.

Whitley's argues that it is too late to compel a further response to the RFPs because the responses were provided in 2024. (Opposition, pp. 3:19-21, 5:1-21.) However, C.C.P. § 2031.310(c) provides that notice of any motion to compel a further response must be "given within 45 days of the service of the verified response, or any supplemental verified response." As Whitley's points out, it served supplemental verified responses to the RFPs on April 24, 2026, and again on May 6, 2026. (Decl. of Marty E. Zemming ["Zemming Decl."], Exs. 4 and 5.) This motion was filed on June 18, 2026, 43 days after the May 6, 2026 supplemental responses were provided. Thus, the motion is timely.

Motion to Compel Production of Documents; Alternatively to Compel Further Verified Responses GRANTED.

Plaintiff to provide verified, code-compliant responses to RFPs 29-37, 42 and 43, without objection, within 5 days.

Sanctions awarded in the amount of \$1,010 (\$475/hour 2 hrs + \$60 filing fee)

The court shall sign the proposed order submitted by Defendant/Cross-Complainant Bottomley.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400400	BUXBAUM VS MCFARLAND	MOTION FOR ORDER REQUIRING DEFENDANTS TO PAY EXPENSES OF PROOF

Tentative Ruling: No tentative ruling. Motion is continued to 8.25.26 for the reasons listed below:

If the party responding to request for admission fails to admit the truth of the matter requested, and the requesting party thereafter proves the truth of that matter, the requesting party may move for an order requiring the responding party to pay the costs and fees incurred in proving that matter. (Code Civ. Proc., § 2033.420(a).) On the requesting party's motion, the court is required to ("shall") make this costs and expenses award, unless the responding party prove any of the excuses further enumerated in this section. Costs and expenses cannot be awarded under section 2033.420 if:

- (1) An objection to the request was sustained or a response to it was waived under Section 2033.290.